

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/09/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0002302

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: CHRIS B. BARGER

vs.

DEFENDANT: ANDREW W. LANDIES, ET
AL

NATURE OF PROCEEDINGS: MOTION – SUMMARY ADJUDICATION

RULING

Appearances required.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHnzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/09/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0005885

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: AMERICAN EXPRESS
NATIONAL BANK

vs.

DEFENDANT: MERSHAD REZAYATI

NATURE OF PROCEEDINGS: MOTION – OTHER: TO VACATE THE CONDITIONAL
DISMISSAL AND FOR ENTRY OF JUDGMENT

RULING

Plaintiff American Express National Bank moves to vacate this Court's conditional dismissal and for entry of judgment pursuant to Code of Civil Procedure section 664.6, and the parties' stipulation. On June 26, 2025, a stipulation and order was filed with the Court in which the parties agreed to a payment plan, and also agreed that if Defendant Rezayati failed to comply with the plan, the Court could enter judgment for the outstanding amount.

Plaintiff submitted a declaration of counsel averring that Defendant Rezayati has not made a payment since June 10, 2025 and is in default of the agreement. Notice of this motion was served on Defendant Rezayati and no opposition was filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54, subd. (c).)

The motion to vacate the conditional dismissal and for entry of judgment is granted.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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